

THE SCHEDULE.

1. All those the tithe rent-charges arising in the parish of Titchfield in the county of Southampton amounting, as appears from the collecting lists of the Dean and Chapter of Winchester on the 1st day of October, 1929, to £1,498 11s. 8d. per annum (being part of the tithe rent-charges by the apportionment confirmed by the Tithe Commissioners for England and Wales on the 31st day of December, 1839, made payable to the Impropiator as varied by subsequent altered apportionments), which are now held by Queen Anne's Bounty in trust for the Dean and Chapter of Winchester, subject to all charges and obligations affecting the said tithe rent-charges and in particular, in exoneration of all other property of the Dean and Chapter of Winchester, to all and every obligation in respect of the said tithe rent-charges for chancel maintenance, and to the payment of an annual sum of £150 to the incumbent of the benefice of Titchfield aforesaid and of another annual sum of £50 to the incumbent of the benefice of Sarisbury with Swanwick in the said county of Southampton.

2. The capital sum in the hands of Queen Anne's Bounty representing all sums with the accumulations thereof under the provisions of the Tithe Act, 1925, carried to the sinking fund established under that Act in respect of the said tithe rent-charges amounting to £1,498 11s. 8d. per annum.

No. 3.

A MEASURE passed by the National Assembly
of the Church of England.

To enable marriages to be solemnized in any church which is the usual place of worship of the persons to be married or of either of them.
[20th March 1930.]

Banns may
be published
and
marriages
solemnized
in a church
which is the
usual place

1.—(1) Subject to the provisions of this Measure, banns of matrimony may be published in the manner prescribed by law in any parish church or public chapel (being a public chapel in which banns of matrimony may now or hereafter be lawfully published) which is the usual place of worship of the persons to be married or of either of them although neither of such persons dwells

in the parish or chapelry to which such parish church or public chapel belongs, and in any case where banns shall have been published in a parish church or public chapel under the authority of this section, the marriage may be solemnized in such parish church or public chapel :

of worship
of either
party.

Provided that no minister shall be obliged to publish banns of matrimony under the authority of this section unless the persons to be married shall, seven days at the least before the time required for the first publication of such banns, deliver or cause to be delivered to such minister a notice in writing, dated on the day on which the same shall be so delivered, of their true Christian names and surnames, of the house or houses of their respective abodes, and of the time during which they have dwelt, inhabited or lodged in such house or houses respectively.

(2) Publication of banns under the authority of this section shall be in addition to and not in substitution for any other publication of banns required by law, and a minister shall not solemnize any marriage under the authority of this section without a certificate or certificates of such other publication of banns from every minister who has published the same.

(3) Section two of the Marriage Act, 1823, shall have effect subject to the provisions of this Measure, and in that section the words "and in no other place whatsoever" are hereby repealed.

4 Geo. 4.
c. 76.

2.—(1) Subject to the provisions of this Measure, the existing power of a superintendent registrar of issuing certificates upon the production of which marriages may be solemnized shall be extended so as to authorise a superintendent registrar to issue a certificate for the solemnization of a marriage in any parish church or public chapel (being a public chapel in which marriages may now or hereafter be lawfully solemnized) which is the usual place of worship of the persons to be married, or of either of them, wherever such parish church or public chapel may be situate.

Marriages
solemnized
on produc-
tion of
certificate of
superinten-
dent regis-
trar.

(2) In any case where a marriage is intended to be solemnized upon the production of a certificate of a superintendent registrar issued under the authority of this section, both the notice of such marriage given to the

superintendent registrar and the certificate of the superintendent registrar shall state in addition to the description of the parish church or public chapel in which the marriage is to be solemnized that it is the usual place of worship of the parties or of one of them and, in the latter case, shall state the name of such one of them.

Marriage by
licence in a
church
which is the
usual place
of worship
of either
party.

3. The provisions of section ten of the Marriage Act, 1823, shall not apply where a licence of marriage is granted to solemnize a marriage in a parish church or public chapel which is the usual place of worship of the persons to be married, or of either of them, and in any such case there shall be substituted for so much of the oath required by section fourteen of the Marriage Act, 1823, as relates to the usual place of abode of one of the parties to the marriage, an oath that the parish church or public chapel in which the marriage is to be solemnized is the usual place of worship within the meaning of this Measure of the said parties or of one of them as the case may be.

Usual place
of worship.

4. For the purposes of this Measure no parish church or public chapel shall be deemed to be the usual place of worship of any person unless he is enrolled on the church electoral roll of the area in which such parish church or public chapel is situate, and where any person is enrolled on the church electoral roll of an area in which he does not dwell such enrolment shall be sufficient evidence that his usual place of worship is a parish church or public chapel in that area.

Rights of
persons
intending
to marry.

5. Persons intending to be married shall have the like but no greater right of having their banns published and marriage solemnized under the authority of this Measure in a parish church or public chapel (being a public chapel in which banns of matrimony may now or hereafter be lawfully published) which is the usual place of worship of one or both of them as they have of having such banns published and marriage solemnized in the parish church or public chapel of the parish or chapelry in which they or one of them dwells.

Proof of
enrolment
on a church
electoral
roll not
necessary to
validity of
marriages.

6. After the solemnization of any marriage under the authority of this Measure it shall not be necessary in support of such marriage to give any proof of the actual enrolment of the parties or of one of them on the church electoral roll of the area in which the parish church or public chapel where the marriage was solemnized is

situate, nor shall any evidence be received to prove the contrary in any legal proceedings touching the validity of such marriage.

7. In this Measure the expression “ church electoral roll ” means a church electoral roll provision for which is made in the Rules for the Representation of the Laity contained in the Schedule to the Representation of the Laity Measure, 1929. Interpretation.

8. This Measure may be cited as the Marriage Measure, 1930. Short title.

9. This Measure shall apply to the whole of the Provinces of Canterbury and York except the Channel Islands and the Isle of Man. Extent.

No. 4.

A MEASURE passed by the National Assembly
of the Church of England.

To enable pensions to be granted to certain of the
Church Estates Commissioners. [15th April 1930.]

1.—(1) The Ecclesiastical Commissioners shall have power to grant out of their Common Fund to any First Church Estates Commissioner or Church Estates Commissioner appointed by the Archbishop of Canterbury who has served as such Commissioner for fifteen years. or who is disabled by permanent infirmity from the duties of his office, a pension by way of annuity commencing on such Commissioner vacating office of such an amount as the Ecclesiastical Commissioners may determine. Pensions of Church Estates Commissioners.

(2) A pension granted under this section shall—

- (i) be payable at the pleasure of the Ecclesiastical Commissioners, but subject to any determination by them to the contrary continue during the life of the pensioner in receipt of the same;
- (ii) accrue from day to day; and
- (iii) be payable, subject to any necessary apportionment, by equal quarterly instalments on the first days of February, May, August and November in each year.

2. This Measure may be cited as the Ecclesiastical Commissioners (Pensions of Church Estates Commissioners) Measure, 1930. Short title.